

the specificity requirement is to give notice to the defendant and to furnish the defendant with certain definite charges that can be intelligently met. (*Alfaro v. Community Housing Improvement System & Planning Assn, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

Here, the pleadings still bluntly posit that certain of Defendant's "agents actively concealed the existence and nature of the . . . Transmission Defect from Plaintiffs at the time of purchase or lease, repair, and thereafter." (SAC, ¶153.) However, in this iteration, Plaintiffs now indicate that *some* sort of communication occurred, albeit from still-unnamed and unidentified agents: They now indicate that Defendant "made partial misleading representations regarding the . . . transmission's performance and characteristics despite its extensive internal knowledge of the . . . Transmission Defect . . ." (SAC, ¶131; see also SAC, ¶134 [disclosed characteristics of drive quality and performance but failed to mention defect].) While the prior iteration seemed to rest only on marketing materials, this iteration now appears – at least impliedly – to set forth sales discussions at the heart of the cause for concealment.

In construing the above allegation in light of the additional allegations relating to prior knowledge and Plaintiffs' need to be aware of such defects, it appears the claims are now sufficiently pleaded. Plaintiffs have pleaded (1) the matter of the defective transmission having been concealed; (2) the concealing of the defect within marketing materials, advertisements, and through the dealership; (3) Defendant's knowledge of the defect; and (4) the effect of the nondisclosure. This sufficiently alleges the elements for fraudulent concealment and specifies the matter, means, and effect of the alleged concealment.

16. *Santamaria v. Gulf Harbour Investments Corp.*, Case No. CIVSB2519211
Defendant's Demurrer to First Amended Complaint
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would again **SUSTAIN** with twenty days' leave to amend.

Case Summary

This is, in essence, an unjust enrichment case. Plaintiff alleges that he financed three properties in the City of Ontario (collectively, the Subject Property) for the purpose renting them out. He had a first loan and a second junior loan. Eventually, the second loan was purchased by Defendant Gulf Harbour, who later initiated foreclosure. The at-issue property was subject to a nonjudicial trustee's sale on September 8, 2021, but the sales amount was insufficient to pay

off the first senior loan; thus, the debt remained an outstanding encumbrance against the Subject Property following the sale.

Plaintiff alleges that, through all of this, he never received any notices regarding the sale and thus continued paying the mortgage on the senior loan. He also states he was motivated to continue making those mortgage payments to preserve his credit. He made those payments for a total of 17 months, from September 2021, through January 30, 2023. Plaintiff asserts he did *not* receive the Notice of Default, Notice of Trustee's Sale, Trustee's Deed Upon Sale, or any Notice to Quit prior to the beginning of eviction proceedings. (FAC, ¶20.) Thus, he asserts a lack of prior notice and a mistaken belief of continued ownership.

Relevant to the inquiry of notice, however, in April of 2022, Plaintiff's tenants informed him that a realtor had visited the subject property to take photographs. (FAC, ¶22.) Then, on May 4, 2022, a tenant provided Plaintiff with a copy of an unlawful detainer action, which asserted ownership adverse to Plaintiff. (FAC, ¶24.) Plaintiff obtained a June 10, 2022 Preliminary Title Report that confirmed a trustee's sale had occurred and that title had been transferred to Defendant Gulf Harbour. (FAC, ¶25.)

As such, he first filed suit on July 2, 2025. After a sustained demurrer, Plaintiff filed a First Amended Complaint (FAC) on January 12, 2026, alleging causes of action for (1) unjust enrichment/ restitution and (2) money had and received. This second demurrer followed.

Analysis

In this case, Defendant largely asserts that the two causes of action are time-barred by the relevant statutes of limitation. Importantly, the initial complaint was not filed until July 2, 2025.

Unjust Enrichment (First Cause): For unjust enrichment based on fraud or mistake is three years from the date of discovery. (*Federal Deposit Ins. Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 348.) Here, Defendant argues that Plaintiff discovered the foreclosure on May 4, 2022, when he received the unlawful detainer action, which he later confirmed by Preliminary Title Report issued on June 10, 2022. The suit, however, was filed on *July 2, 2025*, beyond the 3-year period.

Money Had and Received (Second Cause): For a cause for money had and received, a cause of action "lies wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter." (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 937, quoting *Schultz v. Harney* (1994) 27 Cal.App.4th 1611, 1623.)

Generally, the statute of limitations for a money had and received claim is two years. (Code Civ. Proc., § 339.) However, where money had and received was the result of fraud or mistake a three-year statute applies. (FAC, ¶55; *Creditors Collection Serv. v. Castaldi* (1995) 38 Cal.App.4th 1039, 1043 [fraud being the basis of the legal injury].) Here, the motivating theme in this case is Plaintiff's mistake. (See, e.g., FAC, ¶¶42-43 & 45 [discussing Plaintiff's mistaken beliefs resulting in certain payments and expenditures].)

Again, Defendant argues discovery as of May 4, 2022, later confirmed by a June 10, 2022, Title Report. Thus, initially, the two-year statute of limitations would have run in May of 2024. However, even if viewed in the context of mistake and a three-year statute of limitation, the statute would have run in May of 2025; again, this is before the date the initial complaint was filed in July of 2025.

Equitable Estoppel: The elements of equitable estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon or must so act that the party asserting the estoppel has a right to believe it was so intended; (3) the other party must be ignorant of the true states of the facts; and (4) he must rely upon the conduct to his injury. (*Schafer v. City of Los Angeles* (2015) 237 Cal.App.4th 1250, 1261, citing and quoting *Strong v. Co. of Santa Cruz* (1975) 15 Cal.3d 720, 425.)

While the FAC appears to attempt to plead facts to equitably estop Defendant from asserting statutes of limitation [FAC, ¶53], the allegations appear insufficient: In essence the new pleadings simply assert that Plaintiff could not have reasonably discovered the sale until May of 2022. (*Ibid.*) First, this allegation does not lead to the conclusion that a later date for the statutes of limitations should apply. Second, even in the alternative, the new allegations do not meet the elements. The Court would, however, allow leave to attempt to provide additional allegations to support a basis for estoppel or other means to avoid the statutes of limitation issues.

17. *Wen v. Wang, et al*, Case No. CIVSB2400408
Def. Wang's Demurrer and Motion to Strike Third Amended Complaint
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **SUSTAIN** as to the tenth cause for identity theft *without* leave to amend. The Court would **OVERRULE** as to the twelfth cause for civil conspiracy.

Case Summary

This is essentially a fraud case brought by a *pro per* Plaintiff. Plaintiff alleges that when she met Defendant Wang, he claimed to be a pastor. She alleges that he assured her that he would look after her home while she was away on a work trip, and she gave him a key based on that representation. However, she alleges that on January 21, 2021, she learned that Defendant Wang had forged Plaintiff's husband's name on a rental agreement with Defendant King. On that basis, Defendant King moved into the home. On this basis, she initially filed suit on January